

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sadia Kauser	Team: Squad #15	CCRB Case #: 202103344	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 01/07/2021 11:00 PM, Tuesday, 04/13/2021 4:40 PM, Sunday, 05/23/2021 4:40 PM	Location of Incident: Heberton Ave and Ann St; Port Richmond Ave and Clinton Pl; Port Richmond Ave and Richmond Terrace	18 Mo. SOL 7/7/2022	Precinct: 121		
Date/Time CV Reported Mon, 05/24/2021 10:23 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 06/03/2021 10:36 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. POM Evan Fernandez	25000	963026	121 PCT
3. PO Christopher Schiro	15133	956244	121 PCT

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Abuse: On January 7, 2021, at the intersection of Heberton Avenue and Ann Street in Staten Island, officers stopped the vehicle in which § 87(2)(b) was an occupant.	A . Officer(s) Unidentified
B . POM Evan Fernandez	Abuse: On April 13, 2021, at the intersection of Port Richmond Avenue and Clinton Place, Police Officer Evan Fernandez stopped the vehicle in which § 87(2)(b) was an occupant.	B . Unsubstantiated
C . PO Christopher Schiro	Abuse: On April 13, 2021, at the intersection of Port Richmond Avenue and Clinton Place, Police Officer Christopher Schiro stopped the vehicle in which § 87(2)(b) was an occupant.	C . Unsubstantiated
D . Officers	Abuse: On May 23, 2021, at the intersection of Port Richmond Avenue and Richmond Terrace, officers stopped the vehicle in which § 87(2)(b) was an occupant.	D . Officer(s) Unidentified

Case Summary

On May 24, 2021, § 87(2)(b) filed this complaint with the CCRB via telephone.

On January 7, 2021, at approximately 11:00 p.m., two unidentified police officers stopped § 87(2)(b)'s vehicle in the vicinity of the intersection of Heberton Avenue and Ann Street in Staten Island (**Allegation A: Abuse of Authority, Officer Unidentified**). At the time, § 87(2)(b) had her § 87(2)(b) daughter and § 87(2)(b) son in the back seat of the vehicle.

On April 13, 2021, at approximately 4:40 p.m., Police Officer Evan Fernandez and Police Officer Christopher Schiro of the 121st Precinct stopped § 87(2)(b)'s vehicle in the vicinity of the intersection of Port Richmond Avenue and Clinton Place in Staten Island (**Allegations B and C: Abuse of Authority, Unsubstantiated**).

On May 23, 2021, at approximately 4:40 p.m., two other unidentified officers stopped § 87(2)(b)'s vehicle in the vicinity of the intersection of Port Richmond Avenue and Richmond Terrace in Staten Island (**Allegation D: Abuse of Authority, Officer Unidentified**).

§ 87(2)(b) was not arrested or issued summonses as a result of these incidents.

The investigation obtained video footage from § 87(2)(b) (Board Review #01). No other video footage was found regarding this incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: On January 7, 2021, at the intersection of Heberton Avenue and Ann Street in Staten Island, officers stopped the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) was interviewed by the CCRB on July 6, 2021. § 87(2)(b) provided telephone statements to the CCRB on June 29, 2021 (Board Review #02) and May 19, 2022 (Board Review #03). Police Officer Fernandez and Police Officer Schiro provided statements to the CCRB on March 21, 2022.

§ 87(2)(b) was uncertain of the date of the first incident. She recalled that the incident occurred sometime in the first two weeks of January 2021. § 87(2)(b) believed the incident occurred at approximately midnight between January 7, 2021 and January 8, 2021, but was unsure about the exact time. § 87(2)(b)'s vehicle was a 2013 Mercedes C-350 coupe, with a temporary New Jersey license plate registered in her name. § 87(2)(b) performed an illegal U-turn and pulled up to a side street parking location near the intersection of Heberton Avenue and Ann Street. § 87(2)(b) exited her vehicle fully. § 87(2)(b) forgot to put her vehicle into park when she exited. She observed an unmarked patrol vehicle with two unidentified police officers stationed near the corner store. The unmarked patrol vehicle was a champagne or cream-colored Ford sedan. The unmarked patrol vehicle then pulled up behind § 87(2)(b)'s vehicle. The officers did not perform any vehicle stop procedures such as activating lights or sirens. § 87(2)(b) described the first officer as a white male who was 5'10" to 5'11" tall with a slim but muscular build, a bald head, and slightly older than his partner. § 87(2)(b) described the second officer as a white male in his late 20s to early 30s with black hair and a beard, a heavy build, and approximately 200 lbs. § 87(2)(b) did not learn the names of either officer. The two police officers emerged from the unmarked patrol vehicle and approached § 87(2)(b) to inform her that her vehicle was moving. § 87(2)(b) entered her vehicle to place it in park. The officers approached the driver's side of the vehicle and shined their flashlights into § 87(2)(b)'s vehicle. While the officers had not taken any overt actions to stop § 87(2)(b) one of the

officers told § 87(2)(b) that she had been “pulled over” because of the illegal U-turn. An officer took § 87(2)(b)'s license and registration to the patrol vehicle. The officer returned the license and registration to § 87(2)(b) after a few minutes and told § 87(2)(b) to not make an illegal U-turn again. § 87(2)(b) was not issued any summonses.

Police Officer Fernandez and Police Officer Schiro both stated that they stopped and arrested § 87(2)(b) on March 8, 2021. They denied encountering her prior to that date. They were not aware of any officers pulling § 87(2)(b)'s vehicle over on January 7, 2021.

There were no unmarked vehicles assigned to the 121st Precinct that matched the description provided by § 87(2)(b) (Board Review #04). Based on a search conducted on the MOS Photo Terminal, six officers on the 121st Precinct Roll Call and Command Log from January 7, 2021 matched the pedigree information provided by § 87(2)(b). The six officers were assigned to marked vehicles on the day of the incident. The six officers did not create any memo book entries that corresponded to the incident dates or locations (Board Review #05).

The Event Summaries, Resource Recap Logs, and Stop Report Logs from January 7, 2021 to January 9, 2021 did not contain any entries corresponding to the time and location provided by § 87(2)(b) (Board Review #06-09).

The investigation evaluated this incident as a vehicle stop, as the officers claimed that they pulled § 87(2)(b) over and requested license and registration, though the officers did not initiate a stop. No warrant checks were conducted for § 87(2)(b)'s name, date of birth, or license plate number on January 7, 2021, January 8, 2021, and January 9, 2021 (Board Review #10).

§ 87(2)(g)
§ 87(2)(b) provided a two-week breadth for the date of the incident and did not recall the specific time. Police department documentation provided from a three-day span of the incident dates did not place any officer near the incident location on the incident dates. No vehicles assigned to the command matched § 87(2)(b)'s description of the unmarked patrol vehicle. Numerous officers matched § 87(2)(b)'s descriptions; however, no officers who matched the descriptions were documented to be present at the incident location or assigned to unmarked vehicles on the date of the incident. It is therefore recommended that **Allegation A** be closed as **officer unidentified**.

Allegation (B) Abuse of Authority: On April 13, 2021, at the intersection of Port Richmond Avenue and Clinton Place, Police Officer Evan Fernandez stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation (C) Abuse of Authority: On April 13, 2021, at the intersection of Port Richmond Avenue and Clinton Place, Police Officer Christopher Schiro stopped the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(g)
It is undisputed that Police Officer Fernandez and Police Officer Schiro stopped § 87(2)(b) on March 8, 2021 due to the tinted windows on her vehicle. The stop resulted in § 87(2)(b)'s arrest for an outstanding warrant, § 87(2)(b).

§ 87(2)(b) was not charged with having improperly tinted windows. Police Officer Fernandez was assigned the arrest. § 87(2)(b) did not make any FADO allegations regarding her arrest on March 8, 2021.

§ 87(2)(b) stated that on either April 13, 2021 or April 14, 2021, at approximately 4:40 p.m., she was driving her vehicle northbound on Port Richmond Avenue. The vehicle had factory tints on the

rear two windows and rear windshield. § 87(2)(b)'s window tints blocked 20% of light. § 87(2)(b) observed an unmarked patrol vehicle behind her, separated from her vehicle by a few cars. § 87(2)(b) described the unmarked patrol vehicle as a black Ford sedan with tinted windows. The patrol vehicle activated its turret lights. § 87(2)(b) pulled over to the side of the street and the unmarked patrol vehicle pulled over behind § 87(2)(b)'s vehicle. § 87(2)(b) rolled down her windows. The patrol vehicle pulled up next to § 87(2)(b)'s vehicle. Police Officer Fernandez and Police Officer Schiro were inside the patrol vehicle. § 87(2)(b) recognized Police Officer Fernandez, who was on the passenger side of the patrol vehicle, as her arresting officer on March 8, 2021. Police Officer Fernandez recognized § 87(2)(b). Police Officer Fernandez said to § 87(2)(b) "Oh, it's you again. Can you get those tints fixed?" The patrol vehicle then followed § 87(2)(b) until she turned into her home's parking space.

Police Officer Fernandez stated that on March 8, 2021, he and Police Officer Schiro pulled § 87(2)(b) over for having improperly tinted windows. Police Officer Fernandez arrested § 87(2)(b) for having an outstanding warrant, § 87(2)(b). Police Officer Fernandez did not recall whether an officer measured § 87(2)(b)'s window tints on the date of her arrest. On an unknown date after March 8, 2021, Police Officer Fernandez was the operator of an unmarked patrol vehicle with Police Officer Schiro in the passenger seat. The officers were on patrol in the vicinity of the intersection of Port Richmond Avenue and Clinton Place. Police Officer Fernandez observed a vehicle with tinted windows. Police Officer Fernandez did not measure the window tints because they were "jet black." He activated the patrol vehicle's emergency lights and stopped the vehicle with tinted windows. The stopped vehicle had a temporary license plate with an expired registration tag. Police Officer Fernandez approached the driver's side of the vehicle while Police Officer Schiro approached the passenger's side. The driver rolled the window down and Police Officer Fernandez recognized § 87(2)(b). Police Officer Fernandez told § 87(2)(b) "It's [you] again," and told her she needed to fix her expired license plate. The interaction lasted for half a minute. Police Officer Fernandez did not create a memo book entry because it was a brief interaction and did not result in any law enforcement. Police Officer Fernandez did not arrest or issue a summons to § 87(2)(b) because he recognized her and had arrested her the month prior.

Police Officer Schiro recalled pulling § 87(2)(b) over on March 8, 2021 for tinted windows. Police Officer Schiro did not recall whether an officer measured § 87(2)(b)'s window tints on March 8, 2021. Police Officer Fernandez was § 87(2)(b)'s arresting officer. Police Officer Schiro did not recall any interactions with § 87(2)(b) after her arrest on March 8, 2021, including any vehicle stops.

Neither Police Officer Fernandez nor Police Officer Schiro created any memo book entries that corresponded to the locations or incident dates of April 13, 2021 and April 14, 2021 (Board Review #12-15).

The Event Summaries, Resource Recap Logs, and Stop Report Logs from April 13, 2021 and April 14, 2021 did not contain any entries corresponding to the time and location provided by § 87(2)(b) (Board Review #16-18).

Though Police Officer Fernandez and § 87(2)(b) recalled interacting during a vehicle stop on a date after March 8, 2021, neither Police Officer Fernandez nor § 87(2)(b) were able to identify the specific date on which the incident occurred. Police Officer Schiro did not recall interacting with § 87(2)(b) on any date after March 8, 2021.

According to NYS Vehicle and Traffic Law 375 (12-a), no person shall operate any motor vehicle upon any public highway, road, or street of which the front windshield, the side wings or side

windows, rear side window, and rear window is composed of any material which has a light transmittance of less than seventy percent (Board Review #19).

§ 87(2)(b) stated that her windows were tinted to allow 80% light transmission, a level that is permissible under the New York State Vehicle and Traffic Law. While Police Officer Fernandez and Police Officer Schiro did not recall if the windows' tints were measured either on March 8, 2021 or the date of this vehicle stop, they believed the tints exceeded the legal limit. The degree of tinting on § 87(2)(b)'s windows was not cited on her arrest report from March 8, 2021.

§ 87(2)(g)

On the day of § 87(2)(b)'s arrest, Police Officer Fernandez and Police Officer Schiro did not recall if § 87(2)(b)'s window tints were measured. Furthermore, Police Officer Fernandez did not measure § 87(2)(b)'s window tints on the day of this vehicle stop. § 87(2)(g)

it is therefore recommended that **Allegations B and C** be closed as **unsubstantiated**.

Allegation (D) Abuse of Authority: On May 23, 2021, at the intersection of Port Richmond Avenue and Richmond Terrace, officers stopped the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) stated that on May 23, 2021, at approximately 4:40 p.m., on the east side of the intersection of Richmond Terrace and Port Richmond Avenue, she stopped her vehicle at a red light. § 87(2)(b)'s vehicle was the first vehicle stopped at the light. An unmarked patrol vehicle, described as a gray Ford sedan, turned onto Richmond Terrace and traveled in the opposite direction as § 87(2)(b). The unmarked patrol vehicle slowed down as it passed § 87(2)(b)'s vehicle. The unmarked patrol vehicle performed a U-turn. When the light turned green, § 87(2)(b) drove forward and pulled over on the opposite side of the Crown Chicken restaurant. § 87(2)(b) exited her vehicle and saw that the unmarked patrol vehicle was behind her. Two unidentified officers exited the vehicle. § 87(2)(b) did not learn the names of either officer. § 87(2)(b) described the first officer as a white male who was 5'9" tall with dark hair, clean cut, and in his early 30's. § 87(2)(b) described the second officer as a white male who was 5'10" to 5'11" tall with dirty blond hair and blue eyes. One officer gestured to § 87(2)(b) to get back inside the vehicle. § 87(2)(b) reentered her vehicle. An officer approached the driver's side door and asked § 87(2)(b) for her license and registration. The officer also asked § 87(2)(b) who the vehicle belonged to. § 87(2)(b) informed the officer it was her vehicle. The officer informed her she had been pulled over due to her tinted windows. § 87(2)(b) informed the officer that she was in the process of removing the tints from the window. The officer asked § 87(2)(b) where she lived, and § 87(2)(b) informed the officer that she resided up the block. The officer acknowledged this and went back to the patrol vehicle. § 87(2)(b) did not receive any summons during this incident.

Police Officer Fernandez and Police Officer Schiro were not aware of any officers stopping § 87(2)(b) in her vehicle on May 23, 2021.

Based on a search conducted on the MOS Photo Terminal, ten officers on the 121st Precinct Roll Call and Command Log from May 23, 2021 (Board Review #20) matched the pedigree information provided by § 87(2)(b). The ten officers were assigned to marked vehicles on the day of the incident. The ten officers did not create any memo book entries that corresponded to the incident dates or locations (Board Review #21).

The Event Summary, Resource Recap Log, and Stop Report Log from May 23, 2021 did not contain any entries corresponding to the time and location provided by § 87(2)(b) (Board Review #22-23).

No warrant checks were conducted for § 87(2)(b)'s name, date of birth, or license plate number on May 23, 2021 (Board Review #24).

§ 87(2)(g) Police department documentation did not place any officer near the incident locations on the incident dates. No vehicles assigned to the command matched § 87(2)(b)'s description of the unmarked patrol vehicle. Numerous officers matched § 87(2)(b)'s descriptions; however, no officers who matched the descriptions were documented to be present at the incident location or assigned to unmarked patrol vehicles on the date of the incident. It is therefore recommended that **Allegation D** be closed as **officer unidentified**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review #25).
- Police Officer Fernandez has been a member of service for five years and has been a subject in four CCRB complaints and two allegations, none of which were substantiated.

§ 87(2)(g)

- Police Officer Schiro has been a member of service for eight years and has been a subject in six CCRB complaints and fifteen allegations, of which one was substantiated:
 - 201903838 involved substantiated allegations of failure to provide RTKA card against Police Officer Schiro. The Board recommended Instructions and the NYPD imposed Instructions. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of April 19, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (Board Review #26).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 15

Investigator: Sadia Kauser Inv. Sadia Kauser 05/24/2022
Signature Print Title & Name Date

Squad Leader: Owen Godshall SI Owen Godshall 5/24/2022
Signature Print Title & Name Date

Reviewer: _____

Signature _____ Print Title & Name _____ Date _____